

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

August 13, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Anderson v. Zealie, LLC 2023-01344258	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for approval of an \$17,220 PAGA settlement. The court denies the motion without prejudice for the following reasons: <u>As to the settlement:</u> 1. In the April 2, 2026 order (ROA 140), the court stated that the Casado Declaration (ROA 137) was not signed. This

		issue has not been remedied, and the Second Supplemental Ortiz Declaration (ROA 155) also is not signed. 2. In the October 2, 2025 order (ROA 132), the court stated that plaintiffs had provided little, if any, case-specific valuation analysis. The court stated that plaintiffs must state the legal and factual basis for the claims, must identify the specific discovery (formal and informal) conducted to date, and must describe in detail counsel's investigation of the merits of the claims, and that plaintiffs also must provide specific information sufficient for the court to evaluate whether the consideration being received for the release of the aggrieved employees' claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the litigation. In the April 2, 2026 order (ROA 14), the court stated that the unsigned Casado Declaration set forth various general statements (e.g., ROA 137, ¶¶ 22-28), but did not explain how plaintiffs' counsel valued the claims and why plaintiffs' counsel believes \$17,220 is fair, reasonable and adequate. The court noted that paragraph 20 of the Casado Declaration described an "individual's" total potential recovery, but did not identify the individual or explain why, if one individual's total potential recovery is \$470,970, the gross settlement amount is fair, reasonable and adequate to settle claims for 27 aggrieved employees. The court further noted that \$17,220 is neither 20% or 26% of \$470,970. The court stated that the Casado Declaration also did not explain why "contingency attorney's fees" in the alleged amount of \$230,332 and attorney costs in the amount of \$10,306 would be included as part of counsel's valuation of the claims. The court stated that, in short, plaintiffs still had not provided sufficient case-specific valuation analysis for the court to conclude the settlement is fair, reasonable and adequate, and that this was all the more the case as plaintiffs disclosed in the supplemental filing that they apparently agreed to individual settlements of their wage and hour claims ranging from approximately \$7,700 to \$29,000 per person, i.e., plaintiffs agreed to settle the case for \$140,000, allocating approximately 12% to the aggrieved employees (\$17,220) and 88% (\$122,780) to themselves. Carado Decl. Ex. 4. The court stated that the parties should address in the supplemental filing why this allocation is fair and reasonable to all affected. The Second Supplemental Ortiz Declaration does not sufficiently explain why the proposed settlement of \$17,220, which is approximately 8% of the newly-calculated maximum exposure of \$217,950 (Second Supp. Ortiz Decl. ¶ 14), is a fair, reasonable and adequate settlement. (Notably, plaintiffs' counsel states that the "maximum value" of the named plaintiffs' claims is \$196,623.50 (Second Supp. Ortiz Decl. ¶ 7); plaintiffs settled those claims for \$122,800, i.e., 62.5% of their "maximum value.") Plaintiffs have not
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		sufficiently addressed why the settlement allocation is fair and reasonable to the aggrieved employees. Plaintiffs' counsel's assertion that the named plaintiffs have agreed to "a much greater release of their claims, inclusive of 1542 waiver" (Second Supp. Ortiz Decl. ¶ 19) is inadequate to justify the seemingly unbalanced allocation, especially in light of the fact that plaintiffs are also "expected to receive their pro rata share of the PAGA Settlement" (Second Supp. Ortiz Decl. ¶ 20)—amounts that plaintiffs have not disclosed to the court. 3. In the October 2, 2025 order, the court stated that the "Released Parties" provision in (former) paragraph 1.29 (later paragraph 1.30) was overbroad because it included unrelated, ambiguous and/or unidentified third parties such as "partners, joint venturers . . . consultants, advisors, insurers, reinsurers and assigns, franchisors, and each of their past, present and future officers, investors, directors, executives, owners, trustees, agents, employees, attorneys, representatives, benefit plans sponsored or administered by the Released Parties, and any other persons or entities acting on behalf of or in concert with any of the foregoing." The court stated that the "Released Parties" provision in (then new) paragraph 1.30 remained overbroad. The court stated that the following phrases should be removed: "partners, joint venturers," "each of their past, present and future officers, investors, directors, executives, owners, trustees, agents, employees, attorneys, representatives," and "and any other persons or entities acting on behalf of or in concert with any of the foregoing." The "Released Parties" provision in (now) paragraph 1.29 of the second amendment to the settlement agreement remains overbroad, vague and ambiguous. The following phrases should be removed: "attorneys, representatives"; "operating during the PAGA Period"; and "and any and all subsidiaries of Defendant, and each of their past, present, and future parents, subsidiaries, divisions, predecessors, successors, and shareholders." If the parties contend the release should include specific subsidiaries of defendant, the settlement agreement should identify the specific subsidiaries by name and the parties should explain why each specifically-identified subsidiary should properly be included in the release. <u>As to the notice letter:</u> 4. The notice letter should be revised consistent with the above. 5. The word "Defendants" throughout the notice letter should be replaced with "Defendant," and each corresponding verb should be updated. 6. In the third sentence of the second paragraph, the word "the" should be inserted before "Aggrieved Employees" and
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		the word "in" should be inserted before "the Gross Settlement Amount." 7. In the first sentence of the third paragraph, "lawsuits" should be replaced with "lawsuit." 8. In the second sentence of the third paragraph, the word "amount" should be replaced with "number." 9. In the first sentence of the fourth paragraph, the word "employees" after "Aggrieved" should be capitalized. 10. In the fourth paragraph, the word "Plaintiff's" should be replaced with "Plaintiffs" in three places. 11. The "Released Parties" provision should be revised as stated above. <u>As to the proposed order and judgment (ROA 148):</u> 12. The proposed order and judgment should be revised consistent with the above. 13. In the April 2, 2026 order (ROA 140), the court stated that the parties should submit with their supplemental filing a separate copy of the proposed order and judgment, with the settlement agreement, any amendments thereto, and the notice letter attached as exhibits. This has not been done. 14. The second paragraph on page 3 states: "Plaintiff proposes that notice of entry of judgment be given to [the] Aggrieved Employees through the Settlement Administrator" by first-class mail to each Aggrieved Employee. The parties should confirm to the court that the settlement administrator has agreed to provide notice of entry of the Order and Judgment in this manner. If so, the second paragraph on page 3 should be replaced with the following: "The settlement administrator shall provide notice of entry of this Order and Judgment to the Aggrieved Employees by sending a copy of this Order and Judgment to each Aggrieved Employee by first-class mail at the most current address available after updating addresses through standard database searches, including the National Change of Address database, and reasonable skip-trace efforts for any returned mail." In sum, despite three attempts and two court orders (ROA 132, 140), plaintiffs have not demonstrated that the settlement is fair, reasonable and adequate to all affected. Plaintiffs also have not remedied other issues identified in the court's prior orders, as discussed above. Plaintiffs' motion for approval of the settlement is thus denied without prejudice. A status conference is scheduled for <u>November 19, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing.
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2	Cabuto v. Impact Housing US, LLC 2024-01427671	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$492,500 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$147,750.00 for attorneys' fees (not to exceed); \$20,000.00 for attorneys' costs (not to exceed); \$7,990.00 for settlement administration fees (not to exceed); and \$20,000.00 total PAGA penalties (\$13,000.00 to LWDA). Plaintiff is ordered to file and serve <u>by August 20, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendment thereto, notice packet (in English and Spanish)). The not-to-exceed amount of attorneys' fees stated in the notice and the proposed order should be revised to state the above not-to-exceed amount of attorneys' fees. The final approval hearing is scheduled for <u>December 17, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
3	Clark v. Windsail Capital Group, LLC 2021-01191735	<u>Plaintiffs Growthpoint Global, Inc. and Preston Clark's Motion to Strike to Tax Costs Claimed by Arthur Cohen</u> Plaintiffs Growthpoint Global, Inc. and Preston Clark move to strike or tax costs claimed by Arthur Cohen. Cohen did not file an opposition. For the following reasons, plaintiffs' unopposed motion is granted. In his cross-complaint (filed May 7, 2021), Cohen asserted various claims against Clark and Growthpoint, among others. ROA 216. In his first amended complaint (filed October 4, 2021), Clark asserted various claims against Cohen. ROA 366. Clark dismissed his claims against Cohen without prejudice on May 5, 2022. ROA 711. Clark and Growthpoint did not name Cohen as a party in the operative third amended complaint. ROA 1478. Following a bench trial, as to plaintiffs' claims in the third amended complaint, the court entered judgment on March 12, 2026 in favor of defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand, Matthew O'Rourke and James Pickell. ROA